

circumstances it would, in my opinion, be wrong to allow the matter to be re-opened. I must therefore dismiss the action with costs. 1880. THE AFRIKA.

Solicitor for plaintiffs: *H. C. Coote.*

Solicitors for defendants: *Rollit & Sons.*

[IN THE COURT OF APPEAL.]

Feb. 27.

THE PARLEMENT BELGE. (1878. O. 60.)

Public Vessel—Exemption from Arrest—Trading by Public Vessel.

As a consequence of the absolute independence of every sovereign authority and of the international comity which induces every sovereign state to respect the independence of every other sovereign state, each state declines to exercise by means of any of its Courts any of its territorial jurisdiction over the person of any sovereign or ambassador, or over the public property of any state which is destined to its public use, or over the property of any ambassador, though such sovereign, ambassador, or property be within its territory:—

Held, therefore, reversing the decision of the Admiralty Division, that an unarmed packet belonging to the sovereign of a foreign state, and in the hands of officers commissioned by him, and employed in carrying mails, is not liable to be seized in a suit in rem to recover redress for a collision, and this immunity is not lost by reason of the packet's also carrying merchandize and passengers for hire.

THIS was an appeal on behalf of the Crown from a decision of Sir R. J. Phillimore. (1)

1879. Dec. 11, 12, 13, 20. *Sir H. S. Giffard, S.G.*, the Admiralty Advocate (*Dr. Deane, Q.C.*), and *A. L. Smith*, for the appeal. This is a public ship, and apart from the convention she is not liable to seizure. She belongs to the King of the Belgians in his public character, and if she was trading contrary to her public character that is a question which cannot be raised by a private foreigner though our government might have a right to complain. The property of one sovereign is not subject to seizure in the territories of another, and that the vessel is not armed makes no difference. The carrying arms is only the most usual proof that a ship belongs to the government and is employed for public purposes. *The Exchange* (2) was a strong case, but it has always

(1) 4 P. D. 129.

(2) 7 Cranch, 116.

Referred to. DOLLFUS
MIEG CASE.
[1949] 1 Ch. 389

64/11 Cas
820
Considered. SULTAN
OF JOHORE v. ABU-
BAKAR
[1952] A.C. 318